

TENTATIVE RULING:

Real Party's request to strike Petitioner's opposition or consider only the first 15 pages is denied. The Court, in its discretion as considered Petitioner's opposition in its entirety.

Petitioner's Request for Judicial Notice is denied. Petitioner fails to show that Judicial Notice is required under Evidence Code section 451. The document may be judicially noticed under Evidence Code section 452; however Petitioner fails to show its relevance either in the request for judicial notice or in the memorandum of points and authorities.

The Court finds that Real Party's motion to dismiss on the grounds that the action has not been brought to trial within five years of commencement (Code of Civil Procedure section 583.310) is denied as premature. The Court finds that due to the periods of tolling, the five year period was extended to September 11, 2015.

Real Party's motion to dismiss is GRANTED on the grounds that Petitioner failed to request a hearing within 90 days of filing his lawsuit as required by section 21167.4(a) of the California Environmental Quality Act (Public Resources Code section 21000 et seq.). The petition shall be dismissed in its entirety.

Unless a hearing is requested, this ruling is effective immediately. Neither further notice of the ruling nor a formal order per CRC 3.1312 is required.

TENTATIVE RULING:

Plaintiffs' motion to set trial date is granted. The parties are directed to appear to discuss calendaring and briefing schedules.

The Case Management Conference on calendar for March 7, 2016 is confirmed and shall be vacated upon entry of judgment.